



**NATIONAL INVESTIGATION AGENCY
FIRST INFORMATION REPORT
(Under Section 154 Cr. P.C)**

Book No. 01

Srl. No. 301

1. District: New Delhi

PS: NIA, New Delhi

Year: 2023

FIR No. RC- 01/2023/NIA/DLI

Date: 06.02.2023

2. (i) Act Indian Penal Code (IPC), 1860 : sections 120B, 121, 121A, 122 & 123

3. (a) Suspected Offence: On 06.01.2023, STF, Kolkata Police arrested (i) Md. Saddam @ Saddam Mallick @ Abdul Mallick, S/o Md. Mokarram Mallick, R/o 5/6 Aftab Uddin Munshi Lane, Howrah-0, (ii) Sayeed Ahmed, S/o Nasim Ahmed, R/o 29/3 Golam Hussain Sadar Lane, Howrah-02 and others relating to hatching of a criminal conspiracy to wage war against the Government of India by means of terrorist attack on Government establishment & common people and their involvement in the process of recruiting Muslim youths, collection of arms, ammunition & explosives and raising funds for terror activities.

(b) Day: Friday Date: 06.01.2023 Time: onward before 15.00 hrs

**(c) Information received at PS NIA:
GD Entry No. 06 Date: 06.02.2023 Time: 1935 hrs.**

4. Type of information: Vide Government of India Ministry of Home Affairs (CTCR Division) Order No. 11011/20/2023/NIA, dated 06.02.2023.

5. Place of Occurrence:

- a) Direction & Distance from PS :** About 7 Km. (East-West) from STF PS, Kolkata.
- b) Address:** Easter slope of Vidyasagar sethu
- c) In case, outside the limit of this Police Station, then Name of PS:** Within limits

6. Complainant /Informant

- (a) Name:** Shri Sukanta Das
- (b) Father's/Husband's Name:** N/A.
- (c) Date of Birth:** N/A
- (d) Nationality:** Indian
- (e) Passport No: X Date of Issue: X Place of Issue: X**
- (f) Profession:** Government servant
- (g) Address:** Sub-Inspector, STF, Kolkata.

7. **Details of Known/ Suspected/Unknown accused with full particulars
(Attached separate sheet, if necessary):-**

- (i) Md. Saddam @ Saddam Mallick @ Abdul Mallick, S/o Md. Mokarram Mallick, R/o 5/6 Aftab Uddin Munshi Lane, Howrah-01.
- (ii) Sayeed Ahmed, S/o Nasim Ahmed, R/o 29/3 Golam Hussain Sadar Lane, Howrah-02 and others.

8. **Reasons for delay in reporting by the complainant/informant:** No delay.

9. **Particulars of Properties Stolen:** -N/A-

10. **Total value of Property Stolen.** - -N/A-

11. **Inquest Report/U.D. Case No. if any.** - -N/A-

12. **First Information contents (Attach separate sheet, if required)-**

The Central Government has received information regarding registration of FIR No. 01/2023 dated 06.01.2023 at PS STF, District Kolkata, West Bengal under sections 120B, 121, 121A, 122 & 123 of IPC against (i) Md. Saddam @ Saddam Mallick @ Abdul Mallick, S/o Md. Mokarram Mallick, R/o 5/6 Aftab Uddin Munshi Lane, Howrah-0, (ii) Sayeed Ahmed, S/o Nasim Ahmed, R/o 29/3 Golam Hussain Sadar Lane, Howrah-02 and others relating to hatching of a criminal conspiracy to wage war against the Government of India by means of terrorist attack on Government establishment & common people and their involvement in the process of recruiting Muslim youths, collection of arms, ammunition & explosives and raising funds for terror activities.

The Central Government is of the opinion that a Scheduled Offence under National Investigation Agency Act, 2008 has been committed and, having regard to the gravity of the offence, the grave security ramifications and its national & international linkages, it is required to be investigated by the National Investigation Agency in accordance with the National Investigation Agency Act, 2008.

Therefore, in exercise of the powers conferred under sub-section (5) of section 6 read with section 8 of the National Investigation Agency Act, 2008, the Central Government hereby directs the National Investigation Agency to take up investigation of the aforesaid case.

The MHA order F. No. 11011/20/2023/NIA dated 06.02.2023 and copy of FIR no. 01/2023 dated 06.01.2023 of PS STF, District Kolkata, West Bengal are attached as **Annexure-A & B** respectively.

13. **Action taken:** Re-registered the case as RC-01/2023/NIA/DLI and directed to Shri Soumen Biswas, Inspector, NIA, Kolkata to take up the investigation as the Chief Investigation Officer (CIO).

14. Signature /Thumb Impression
Of the complainant/informant


Signature of Officer-in-Charge
Police Station NIA HO, New Delhi
डा. सुदर्शनी, भा.पु.सं./D. SUDARVIZHI, IPS
पुलिस अधीक्षक/Superintendent of Police
राष्ट्रीय अन्वेषण अभिकरण/National Investigation Agency
गृह मंत्रालय/Ministry of Home Affairs
भारत सरकार/Government of India
नई दिल्ली/New Delhi

15. Date and time of dispatch to the Court
____/____/____


Signature of recording officer with date
डा. सुदर्शनी, भा.पु.सं./D. SUDARVIZHI, IPS
पुलिस अधीक्षक/Superintendent of Police
राष्ट्रीय अन्वेषण अभिकरण/National Investigation Agency
गृह मंत्रालय/Ministry of Home Affairs
भारत सरकार/Government of India
नई दिल्ली/New Delhi

Enclosures:

- (i) Government of India, Ministry of Home Affairs, CTCR Division Order F. No..
11011/20/2023/NIA dated 06.02.2023 : 1 page.
- (ii) Copy of FIR no. 01/2023 dated 06.01.2023 of PS STF, District Kolkata, West Bengal: 04 pages.

Endorsement No. : 1882-1888 dated 06.02.2023

1. The Ld. Special Judge, NIA Special Court, Bichar Bhawan at Kolkata.
2. The Addl. Secretary (CTCR Division), MHA, North Block, New Delhi.
3. The DGP, West Bengal.
4. The IG (NEZ), NIA Hqrs, New Delhi.
5. Shri Soumen Biswas, Inspector/CIO, NIA Kolkata.
6. Crime Record Section, NIA Hqrs, New Delhi.
7. Crime Section, NIA, Kolkata.

No. 11011/20/2023/NIA
Government of India
Ministry of Home Affairs
CTCR Division

North Block, New Delhi
Dated, the 6th February, 2023

ORDER

Whereas, the Central Government has received information regarding registration of FIR No. 01/2023 dated 06.01.2023 at PS STF, District Kolkata, West Bengal under sections 120B, 121, 121A, 122 & 123 of IPC against (i) Md. Saddam @ Saddam Mallick @ Abdul Mallick, S/o Md. Mokarram Mallick, R/o 5/6 Aftab Uddin Munshi Lane, Howrah-01, (ii) Sayeed Ahmed, S/o Nasim Ahmed, R/o 29/3 Golam Hussain Sadar Lane, Howrah-02 & others relating to hatching of a criminal conspiracy to wage war against the Government of India by means of terrorist attack on government establishment & common people and their involvement in the process of recruiting Muslim youths, collection of arms, ammunition & explosives and raising funds for terror activities;

And whereas, the Central Government is of the opinion that a Scheduled Offence under National Investigation Agency Act, 2008 has been committed and, having regard to the gravity of the offence, the grave security ramifications and its national & international linkages, it is required to be investigated by the National Investigation Agency in accordance with the National Investigation Agency Act, 2008;

Now, therefore, in exercise of the powers conferred under sub-section (5) of section 6 read with section 8 of the National Investigation Agency Act, 2008, the Central Government hereby directs the National Investigation Agency to take up investigation of the aforesaid case.



(Vipul Alok)

Under Secretary to the Government of India

To:-

1. The Director General, National Investigation Agency, CGO Complex, Lodhi Road, New Delhi
2. Chief Secretary to the Government of West Bengal
3. DGP, West Bengal

FIRST INFORMATION REPORT

203751

First Information of a cognizable crime reported under section 154 Cr. PC at P.S.

1. Dist. Kolkata Sub-Div. Id. C.M.U. P.S. STF Year 2023 FIR No. 01 Date 06/01/23
 2. (i) Act IPC Sections 120B/121/121A/123/123A Sections
 (iii) Act X Sections X (iv) Other Acts & Sections X

3. (a) General Diary Reference : Entry No. STF PS S.D. Eno - 167 Time 19.00 hrs.
 (b) Occurrence of Offence: Day Friday Date 06/01/23 Time around before 15.00 hrs.
 (c) Information received : Date 06/01/23 Time 14.20 hrs
 G.D. No. STF PS S.D. Eno - 169 at the Police Station :

4. Type of Information : Written / Oral Typed letter of complaint.5. Place of Occurrence : (a) Direction and Distance from P.S. about 7 km (East-West).

(a) Address on the eastern slopes of Vidyasagar sether near the bifurcation point of the flank leading to ATC Road and Khidolpur / expanse of land road under Hastings P.S. area. Beat No. N.A.

(c) In case outside limit of this Police Station, then the name of P.S. N.A.District N.A.

6. Complainant/Informant :

(a) Name Sukanta Das S.I. of STF Kolkata(b) Father's/Husband's Name As per service book.(c) Date/Year of Birth As per service book.(d) Nationality Indian. As per service book.(e) Address 112, Ripon Street - Kolkata - 16.7. Details of Known/suspected/unknown/accused with full particulars 1. Md. Saddam & Saddam Melik (alias) Melik (alias) 2. Md. Mulkavam Melik 25/6 Attebuddin Munchi Lane, Howrah-02, Howrah-02 3. Sayed Ahmed (alias) 29/3 Golem Humain Sader Lane Howrah-02, P.S. Shibpur (in custody) and others.8. Reasons for delay in reporting by the Complainant/Informant As per attached Service List dt - 06/01/23.9. Particulars of properties stolen/involved : (Attach separate sheet, if required) As per attached Service List dt - 06/01/23.10. Total value of properties stolen/involved Yet to be ascertained11. Inquest report/U.D. : Case No. if any : N.A.

12. FIR Contents : (Attach separate sheets, if required) The accused persons and their other unknown associates, hatched a criminal conspiracy to wage war against the Govt of India to overthrow the established Govt for establishing "Caliphate" by means of terrorist attack on Govt establishment and common people in concerted manner by propagating the Islamic fundamental ideology, helped in the conspiracy to that conspiracy they were abetting each other to wage war and are in the process of recruiting young muslims by walk and collection of arms, ammunition and explosives and also to raise fund for terror and before the

13. Action taken : Since the above report reveals commission of offence(s) u/s V.S. 120B/121/121A/123/123A/123B/123C

registered the case and took up the investigation/directed Inspector Tappa of STF P.S. Kolkataup - 06/01/23 to take up the investigation/transferred to P.S. on point of jurisdiction. FIR read over to the Complainant/Informant.

admitted to be correctly recorded and a copy given to the Complainant/Informant free of cost.

The attached letter of complaint (typed)S.I. Sukanta Das of STF V/S has receivedlist dt - 06/01/23 has been stated in theFIR of this station.

Signature of Sukanta Das
 Thumb Impression of 06/01/23

the Complainant/Informant

06/01/23

Forwarded
06/01/23
 Officer-in-Charge
 STF Police Station
 Kolkata Police

Signature of the Officer-in-Charge, STF Police StationName SUDIPTO BISWAS Kolkata PoliceRank INSPECTOR of POLICENumber, if any O.C. STF P.S.

To
The officer-in-charge
STF, Police Station
Kolkata

Insp. Silach Toppe Plc.
Start a case & investigate.

Don
06/01/23
Officer-in-Charge,
STF Police Station
Kolkata Police

Sir,

In producing the arrested accused persons namely (1) Md. Saddam @ Saddam Mallick @ Abdul Mallick (28) S/O Md. Mokarram Mallick of 5/6 Aftab Uddin Munshi Lane, Howrah-01, PS: Howrah and (2) Sayeed Ahmed (30) S/O Nasim Ahmed of 29/3 Golam Hussain Sadar Lane, Howrah-02, PS: Shibpur in custody and the seized articles as per the enclosed seizure lists dated 06.01.23, statements and other documents this is to submit that this day (06.01.23) at about 13.00 hrs received a source information that two Howrah based young men being involved in anti-national activities were coming to Khidderpore to hold a secret meeting in order to carry out subversive activity.

On receipt of the above information conveyed it to superiors and with their permission a raiding team was formed under the leadership of the undersigned to work out the said information. After entering the fact in brief in the PS GD book left with the raiding team with investigation kit for the place as per information.

On our arrival at the eastern slope of Vidyasagar sethu along with the source and two independent witnesses namely (1) Sarwar Khan (38) S/O Lt. Wali Mohammad of 23, Eliot Road, Kolkata-16, PS : Park Street and (2) Tareque Alam (42) S/O Firoz Alam of 4, Bed Ford Lane, Kolkata-16, PS: Park street, started maintaining watch in disguise.

At about 15.00 hrs of date the source pointed out two persons riding a motorcycle coming from Howrah end along Vidyasagar Sethu as those two persons involved in anti-national activities. Immediately accosted them with the help of team members by stopping their Hero-Extreme (black colour) motor cycle at the eastern slope of Vidyasagar sethu near the bifurcation point of the flank leading to AJC Bose road and Khidderpore/Esplanade bound road, under Hastings PS area. On being asked the pillion rider wearing a black and white helmet and carrying one black colour back-pack disclosed his identity as : (1) Md. Saddam @ Saddam Mallick @ Abdul Mallick (28) S/O Md. Mokarram Mallick of 5/6 Aftab Uddin Munshi Lane, Howrah-01, PS: Howrah and the motorcycle rider wearing blue helmet and spectacles disclosed his identity as (2) Sayeed Ahmed (30) S/O Nasim Ahmed of 29/3 Golam Hussain Sadar Lane, Howrah-02, PS: Shibpur.

On search of Md. Saddam the following articles were found in his possession :- one black colour back-pack containing one peach colour plastic containing one Jahar Coat, one rag-mat used for praying Namaz, one black colour "airtel my wifi" and one partially used note book containing names of different company and channels including Jehadi channels written in English, one black colour purse containing cash Rs. 1040(500x2+ 20x2), three debit cards one of ICICI bank, one of Canara bank and the other of India Post payment bank, one driving licence in the

Don
STF
06/01/23

name of Saddam Mallick, one PAN card in the name of Mohammad Saddam, one "Lenovo K6 note" smart mobile phone of silver colour with white & sky blue back cover. On scrutinising mobile phone it could be found that there are several Jehadi contents in it.

On search of the other detainee namely Sayeed Ahmed the following articles were found :- one black colour purse containing cash Rs. 630(500x1 + 100x1 + 20x1 + 10x1), four debit cards two of ICICI bank, one of Indian bank and the other of UCO bank, one "Motorola g52" smart mobile phone of white colour and the motorcycle which he was riding.

On interrogation of the detainee Md. Saddam, it transpired that he is in collusion with the other detainee Sayeed Ahmed and others conspired to wage war against the govt of India to over throw the established govt for establishing "Caliphate" by means of terrorist attack on govt establishment and common people in concealed manner by propagating the Islamic fundamental ideology, hatred in the society. It further transpired that in order to fulfil their intention of waging war against the govt they are in the process of recruiting young Muslim youths and collection of arms ammunition and explosives and also to raise fund for terror.

From the above facts and circumstances it appears that the above named detainees and their other associates are involved in the commission of cognizable offence U/S 121/121A/122/123/120B IPC. Accordingly seized the aforesaid articles in two separate seizure lists in accordance to the possession of the respective detainees at the spot in presence of the independent witnesses and the detainees after observing all the legal formalities.

Under the above circumstances arrested the detainees namely (1) Md. Saddam @ Saddam Mallick @ Abdul Mallick (28) S/O Md. Mokarram Mallick and (2) Sayeed Ahmed (30) S/O Nasim Ahmed at that spot at about 16.30 hrs (06.01.23) after maintaining all legal guidelines.

In view of the above you are requested to kindly take necessary legal step against the arrested accused persons.

This letter of complaint is typed by me in my office computer.

Yours faithfully


06/01/23
(Sukanta Das)
SI, STF, Kolkata